

25SMCV03911 25SMCV03911

County: los-angeles

Division: Civil Law and Motion

Department: P

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Case Number: 25SMCV03911 Hearing Date: August 20, 2026 Dept: P

Tentative

Ruling

Davis

v. Costco Wholesale Corp, et al., Case No. 25SMCV03911

Hearing

date August 20, 2026

Defendant

Goshare Inc.'s Motion for Judgment on the Pleadings

Background

This is a personal injury action. Plaintiff Brian

Davis sues Defendant Costco Wholesale Corporation and Goshare, Inc. for negligence. Davis's claims arise out of an injury he sustained while helping a Goshare installer assemble a bed he purchased from Costco.

Davis filed the complaint on July 25, 2025.

Costco answered on August 28, 2025.

Goshare has not filed an answer.

On March 11, 2026, the Court granted Costco's four motions to compel discovery and a Motion to Deem RFAs admitted and sanctioned Davis \$3,040.00 for failure to respond to discovery requests.

On March 24, 2026, Costco moved for judgment on the pleadings based on Plaintiff's deemed admissions.

On March 26, 2026, Goshare, Inc. filed the instant Motion for Judgment on the Pleadings on the same grounds.

On April 17, 2026, the Court granted Costco's March 24, 2026 motion.

Goshare's motion is now before the Court.

As of August 18, 2026, Davis had filed no opposition.

Request
for Judicial

Goshare requests judicial notice of the Court's March 11, 2026, minute order granting Costco's Motion for Deemed Admissions and deeming Costco's Requests for Admissions, Set One, admitted.

Goshare's Request for Judicial Notice is GRANTED.

Discussion

As a threshold matter: Goshare may not move for judgment on the pleadings if it has not filed an answer. (See Code Civ. Proc., § 438(f)(2) [motion by defendant only if "defendant has already filed his or her answer ... and the time for the defendant to demur to the complaint has expired"].)

The Court construes Goshare's purported motion as a demurrer to Plaintiff's complaint, rather than a motion for judgment on the pleadings. (See *Colberg, Inc. v. State ex rel. Dept. of Public Works* (1967) 67 Cal.2d 408, 411-412 [motion filed prior to answer "perform[s] the function of a general demurrer"].)

The Court incorporates its reasoning set forth in its minute order of April 17, 2026,

granting Costco's motion for judgment on the pleadings based on the same legal reasoning and the same deemed admissions.

Davis's

deemed admissions include an admission that "[his] own negligence caused the INCIDENT". (Mulgrew Decl., Exh. A, 4:26.) The Court construes this as an admission that Davis's own negligence is the legal cause of the incident, to the exclusion of Goshare or Costco's alleged negligence. Thus, the deemed admission defeats Davis's claim against both defendants. (See Swedberg v. Christiana Community Builders (1985) 175 Cal.App.3d 138, 143-144 [co-defendant may use deemed admissions against plaintiff].)

Goshare's

DEMURRER to Davis's complaint is SUSTAINED, WITHOUT LEAVE TO AMEND.